RE: Rule 2.420 Administrative Public Records Request — Case Nos. 2D2025-1936, 2D2026-0279, 2D2025-0681, 2D2026-1955, and 24-DR-001150 — order for copies, and a narrowed question

From: [redacted]

To: 2dcaclerk@flcourts.org

Cc: christophhanson77@gmail.com; 2dcapio@flcourts.org; 2dcapio@flcourts.org; haynesj@flcourts.gov

Date: Thursday, July 30, 2026 at 06:53 PM EDT

Dear Ms. Kuenzel:

Thank you for your July 27, 2026 response on behalf of Chief Judge Lucas. The answer on the quarterly reports is the most concrete response I have received on any of these requests, from any court.

I am writing to order and pay for copies, to narrow my question, and to list the items from my July 20 letter that remain open.

1. Copies ordered, $17.00

a. The five documents your June 3, 2026 letter identified, where it stated that "[t]he documents reflecting panel assignment are as follows" and listed, for Case No. 2D2025-1936, the "February 11, 2026, Notice of Oral Argument (3 pages)," the "OA sign-in sheet for April 7, 2026 (2 pages)," and the "April 15, 2026, disposition (2 pages)"; for Case No. 2D2026-0279, the "February 10, 2026, disposition order (1 page)"; and for Case No. 2D2025-0681, the "September 12, 2025, disposition (1 page)." That letter said "[f]or a copy of the documents listed above, the charge is $9."

I understand from the same letter that four of these are available without charge on ACIS. I am ordering the set from your office anyway, so that the Court's production of it is on the record.

b. The six Rule 2.250(b)(1) quarterly reports identified in your July 27 letter, totaling eight pages at $1 per page, or $8.00.

Total $17.00. Please tell me how you would like payment and I will send it the same day. I am paying the stated charge to avoid delay and not as agreement to the rate. Credit card over the phone is the easiest for me, but I will wait to hear from you on what works.

c. The 2025 versions of the Internal Operating Procedures. Section 3.8 provides that the clerk maintains the original manual as a court record available for inspection. The copy I have took effect December 1, 2025. Most of the orders I ask about below issued before that date, so the version then in effect is the one that governs them. I would like to inspect or receive it. This request is the reason section 2 is framed as it is.

2. The question I am asking

I have narrowed this considerably. I am not asking who decided the dispositions in my cases. The Court identifies them and I have them.

I have at least six orders in my cases that identify no judge. Five issued in Case No. 2D2025-1936, on July 29, 2025, July 30, 2025, September 8, 2025, November 26, 2025, and January 27, 2026. At least one issued in Case No. 2D2025-0681, on February 2, 2026. Each is headed "BY ORDER OF THE COURT:", each carries your certification and signature, and none names a judge. My question extends to any other order in these cases headed "BY ORDER OF THE COURT" that does not identify the participating judges. I have named only the six I have in front of me.

The question, as to each, is in two parts. First, does the Court hold any record showing which judge, judges, or officer considered or entered that order? Second, if such a record exists, is it being withheld, and under which subdivision?

I ask it in that form because the answers I have received so far state that no responsive document was filed as part of the court record and that any record not filed as part of the court record is exempt. Read together those do not tell me whether the record exists. Rule 2.420(m)(2) provides that "[t]he custodian must determine whether the requested record is subject to this rule and, if so, whether the record or portions of the record are exempt from disclosure," and that "[i]f the request is denied, the custodian must state in writing the basis for the denial." A written answer to the two questions above, for each order, satisfies that provision and resolves this. A statement that no such record exists in any form is a complete answer and I will accept it as one.

The records I have in mind are the ordinary ones: the assignment or routing entry in the Court's case management system, the roster of the motions panel convened in the week an order issued, and any entry recording who the matter was presented to. I am not asking for any judge's reasoning, notes, conference materials, or vote.

A second question, which depends on the 2025 manual. The December 1, 2025 manual describes at least four ways a matter may be considered. Section 6 provides that "[t]hree judges constitute a panel for the consideration of every proceeding, excepting those that are considered en banc," that "[m]atters requiring judicial attention prior to perfection are prepared by central staff attorneys and presented to regularly scheduled motions panels," and that "[e]mergency panels are convened for especially time-sensitive concerns." Section 6.4 provides that "[r]outine, nondispositive motions may be decided by one judge," and that "[o]rders on motions to dismiss, to strike, for sanctions, to relinquish jurisdiction, to stay the appeal or lower tribunal proceedings, to expedite, to review the denial of supersedeas bonds in criminal cases, to review the denial of insolvency, and to consolidate proceedings must have the concurrence of two judges." Section 5.2(C) provides that "[t]he court delegates to the central staff director or designee the authority to rule on some routine motions."

I recognize that this manual took effect after four of the six orders issued, which is why I have asked for the 2025 versions. To the extent the same structure was in place when each order issued, I would appreciate knowing which of those paths produced it. If the structure differed, the 2025 manual will tell me.

3. Why I do not think Rule 2.420(c)(1) reaches these records

Rule 2.420(c)(1) makes confidential "[t]rial and appellate court memoranda, drafts of opinions and orders, court conference records, notes, and other written materials of a similar nature prepared by judges or court staff acting on behalf of or at the direction of the court as part of the court's judicial decision-making process utilized in disposing of cases and controversies before Florida courts unless filed as a part of the court record."

The operative words are "as part of the court's judicial decision-making process." An assignment record is not of that character. It records who was given a matter to consider, not anything about how it was considered.

Section 3.4 of the Court's manual is the clearest statement of that. It provides that "[t]he clerk schedules and assigns cases under the supervision of the chief judge and the case management committee," and that "[o]ral argument and oral argument waived panels are randomly selected, and the assignment of cases to these panels is undertaken in a manner that guarantees that litigants, attorneys, and judges have no part in the assignment of a case to a panel or a primary assignment of a case to a judge."

That sentence speaks to oral argument and oral argument waived panels, but the principle it states is general: assignment is performed by the clerk, at random, in a process from which judges are excluded by design. A record generated by a clerk performing a random selection in which no judge participates is difficult to describe as material prepared as part of a judge's decision-making process.

Section 3.3 points the same way. It provides that "the clerk identifies on the face of the order the names of the participating judges on the case." I understand your position that section 3.3 is limited to orders of disposition and I am not arguing otherwise. I cite it only because identifying the participating judges is a function the clerk performs in the ordinary course.

If the Court's position is that assignment and routing records are themselves part of the judicial decision-making process, I would appreciate confirmation of that in writing, and the basis for it.

4. Items open from my July 20 letter

I raised items (1) through (4), (6), and (7) on July 20 and asked for a response by July 27. Item (5) has been open since my May request. Your July 27 letter does not fully address them. So that the record is clear, please respond to each numbered item, even if the response is that no record exists.

(1) A written statement identifying the material withheld, and the basis for each denial. Rule 2.420(m)(2) requires the custodian to state in writing the basis for a denial, and to determine, for each requested record, whether the record or portions of it are exempt. A stated basis that does not identify what is being withheld cannot be reviewed. My July 20 letter asked for that identification; for each record or category withheld, I renew the request. If the Court's position is that a citation to the subdivision alone satisfies the rule, please tell me so in writing.

(2) A statement of the search conducted.

(3) Preservation. My July 8 and July 20 letters asked for preservation pending resolution. Neither request has been acknowledged. I renew it as to all records described in this letter and in my prior requests, and ask for written acknowledgment. I ask specifically that the Court's retained copy of the April 7, 2026 oral argument recording in Case No. 2D2025-1936, audio and video, be preserved. Your June 3 letter advised that the argument "was live-streamed on the Court's YouTube channel" and that "[a] copy of the recording is available on the Court's website." I am asking about the Court's own copy, not the published one.

(4) The OSCA referral. The July 14 letter said a request had been made to the Office of the State Courts Administrator. I asked for the date of the referral, the search terms used, and the systems and custodians searched. Those concern a referral the Court itself made.

(5) The records retention schedule. My request of May 14, 2026, which your June 3 letter received as my email of May 18, asked for the applicable schedule and any disposition documentation. The June 3 response stated there were no responsive documents filed as a part of the court record and directed me, "[f]or information only," to Rules 2.430 and 2.440. A retention schedule is an administrative record. If the Court applies those rules rather than a separate schedule, saying so answers this.

(6) Recusal in my other cases. Section 6 below.

(7) Case No. 24-DR-001150. Your July 27 caption refers to my appellate cases "arising from case no. 24-DR-1150" but does not say whether records referencing that number were searched. Please confirm whether they were.

5. Reports

a. The sixty-day rehearing report. Section 3.7 states that "[a] similar report is prepared for rehearings and rehearings en banc that have been pending for more than sixty days." In Case No. 2D2025-0681 I moved for rehearing, clarification, oral argument, en banc review, and a written opinion on September 26, 2025. It was denied on February 2, 2026. That is 129 days, and it passed sixty days on November 25, 2025. I request the entries identifying that case for November 2025, December 2025, and January 2026. If no such report was prepared, or if it exists and does not list the case, please provide that information to resolve this. Please also include any other such reports that include any of my case numbers on them.

b. On the conference agenda point. Section 3.7 states that copies of the Rule 2.250(b) quarterly reports "are appended to the court conference agenda." The Court has offered those reports for production. So appending a report to the conference agenda does not, by itself, make it exempt. I raise this because your July 27 letter treats court conference records as confidential, and I want to understand which records that position covers.

6. Recusal

Your letter states that "Judge Andrea Teves Smith is recused in case no. 2D2025-0681."

The September 12, 2025 disposition in that case identifies Judges Northcutt, Khouzam, and Morris. After the disposition, I have from that case the February 2, 2026 order, which identifies no judge, and the February 19, 2026 mandate.

Section 1.7 describes two paths to a recusal. The first is the list the clerk maintains "for each active judge of persons or entities who are likely to appear before the court and whose involvement in a proceeding will require the judge's recusal." The second follows the sentence "[t]he court recognizes that this list will not identify all cases involving conflicts," and provides that "[i]f a judge identifies a conflict necessitating recusal from a case on which the judge has already been assigned, the judge shall notify the clerk, who will designate a substitute judge." Rule 2.210(a)(2)(D) provides a third, under which the chief judge or a designee may assign a matter pending before a disqualified judge to another judge.

Please tell me which applies here: whether the recusal came from the section 1.7 list, whether the judge identified the conflict after assignment so that your office designated a substitute, or whether it arose before any assignment. If a substitute was designated or a matter reassigned, I request the record of that designation, including its date and the officer who made it.

Please also state the date the recusal took effect, and whether Judge Teves Smith participated in any order in Case No. 2D2025-0681.

Separately, please state whether any judge is recused, or has been recused at any point, in Case No. 2D2025-1936, in Case No. 2D2026-0279, and in Case No. 2D2026-1955, my certiorari petition docketed July 27, 2026. Section 1.7 ties the recusal list to the assignment of cases, so I am asking about the last one early.

7. Custodian

Rule 2.420(b)(3) provides that "[t]he custodian of all administrative records of any court is the chief justice or chief judge of that court, except that each justice or judge is the custodian of all records that are solely within the possession of that justice or judge."

I understand your responses of June 3 and July 27, 2026 to be Chief Judge Lucas's determinations as custodian, made on his behalf. Please tell me if that is not correct.

Section 4.1(K) lists "[m]aintaining the court's administrative records and responding to requests for such records" among the Marshal's duties. Please tell me whether any part of these requests should be directed to Marshal Haynes, and whether any record sought in these requests is solely within the possession of an individual judge. If it is, please identify the judge, so I can direct a request to the right custodian.

8. The administrative plan and the docket status report

Rule 2.210(a)(2)(C) provides that "[t]he chief judge shall develop an administrative plan that shall include an administrative organization capable of effecting the prompt disposition of cases, the assignment of judges, other court officers, and court personnel, and the control of dockets," and that "[t]he administrative plan shall include a consideration of the statistical data developed by the case reporting system."

Your letter states that "[t]here are no administrative orders of the court relating to the assignment of cases." I request the administrative plan developed under that provision. If the Internal Operating Procedures are that plan, please tell me so and I will treat them as such. If no such plan exists in documentary form, a statement to that effect answers this.

Rule 2.210(a)(2)(E) provides that the chief judge shall "regulate the use of all court facilities, regularly examine the dockets of the courts under the chief judge's administrative supervision, and require a report on the status of the matters on the docket." I request any such report identifying my case numbers. If one document serves this purpose and also the section 3.7 or Rule 2.250(b) purposes, please say so and produce it once. If no such document or report exists, a statement to that effect answers this.

9. Scope, and the Marshal

This letter narrows section 2 only. My request of May 14, 2026 otherwise stands as made, and I extend its time period through the date of your response to this letter.

Marshal Haynes acknowledged on July 21, 2026 that the search "requires coordination with the Office of the State Courts Administrator, which is ongoing," without a timeline. I would appreciate an estimated completion date. I have written to him separately.

My letters of July 8 and July 20, 2026 gave notice under Rule 2.420(l). I would still much rather resolve this by correspondence, and I recognize that the Court has responded three times since June 3. The written answers I have asked for in sections 2 and 4(1) are part of what a reviewing court would examine if this is not resolved.

I am not asking the Court to reconsider any ruling and I am not challenging the substance of any decision in these appeals. The concerns described herein relate to administrative records only.

Respectfully,

Christopher A. Hanson

Florida Bar No. 44094

Self-Represented

[redacted]

[redacted]

On Monday, July 27, 2026 at 03:45:23 PM EDT, 2dca Clerk <2dcaclerk@flcourts.org> wrote:

RE: Case nos. 2D2025-0681, 2D2025-1936, and 2D2026-0279 (arising from case no. 24-DR-1150)

Dear Mr. Hanson:

On behalf of Chief Judge Lucas, I am responding to your email of July 20, 2026. You have again requested:

1. formalized judicial-assignment memoranda, administrative orders, or directives establishing panel compositions and duty assignments for the above-captioned cases.

There are no administrative orders of the court relating to the assignment of cases. Administrative orders are posted on the court's website. https://2dca.flcourts.gov/Practice-and-Procedures/administrative-orders

As to the remaining items, and as stated in the July 14, 2026, response, any records of "formalized judicial-assignment memoranda, . . . or directives establishing panel compositions and duty assignments for the above-captioned cases" are confidential and exempt under Florida Rule of General Practice and Judicial Administration 2.420(c)(1) (applying to "appellate court memoranda, drafts of opinions and orders, court conference records, notes, and other written materials of a similar nature prepared by judges or court staff acting on behalf of or at the direction of the court as part of the court's judicial decision-making process utilized in disposing of cases and controversies before Florida courts unless filed as a part of the court record"). No documents of this type were filed as part of the court record in the cases listed above, other than what was previously provided or offered.

As to the "administrative communications among judges, judicial assistants, staff attorneys, clerks, or court administrators reference the scheduling, administration, or routing of those cases or my name" and "telephone records—call-detail logs or voicemails—referencing the above-captioned cases," Marshal Haynes is reviewing information provided by the Office of State Courts Administrator and will respond to your separate email.

As explained in section 3.3 of the Court's Internal Operating Procedures, the judges' names appear on "Orders of Disposition," which are orders that dispose of a case. Case numbers 2D2025-0681 and 2D2025-1936 were disposed by opinion, not by order. Case no. 2D2026-0279 was disposed by order, and the order of disposition listed the judges' names. Section 3.3 does not apply to orders prior to or following the disposition of a case.

You have asked for any "records that reflect which judges participated in those orders" prior to or following the disposition in each case, but these records are confidential and exempt under rule 2.420(c)(1) unless filed as a part of the court record. There are no documents filed as part of the court record that reflect which judges participated in those orders.

You have asked whether any judge is recused in your cases. Judge Andrea Teves Smith is recused in case no. 2D2025-0681.

Court conference records are confidential and exempt pursuant to rule 2.420(c)(1).

For the period from January 1, 2025, through the date of this letter, quarterly reports were filed with the Chief Justice under rule 2.250(b) as follows:

Report for the Quarter Ending March 31, 2025 (1 page),
Report for the Quarter Ending June 30, 2025 (1 page),
Report for the Quarter Ending September 30, 2025 (2 pages),
Report for the Quarter Ending December 31, 2025 (2 pages),
Report for the Quarter Ending March 31, 2026 (1 page), and
Report for the Quarter Ending June 30, 2026 (1 page).

The charge for a copy is $1 per page. Upon receipt of payment, court staff will provide the copies. Please specify which reports you are requesting.

Sincerely,

Mary Beth Kuenzel, Clerk
Second District Court of Appeal
525 Mirror Lake Drive North
St. Petersburg, FL 33701

cc: The Hon. Matthew C. Lucas, Chief Judge
Marshal Jo Haynes

From: [redacted]
Sent: Monday, July 20, 2026 6:04 PM
To: 2dcaAdministrative <2DCAPIO@flcourts.org>; 2dca Clerk <2dcaClerk@flcourts.org>; 2dcaAdministrative <2DCAPIO@flcourts.org>

Cc: Jo Haynes <haynesj@flcourts.gov>; Mary Beth Kuenzel, Clerk <kuenzelm@flcourts.org>; chris hanson <christophhanson77@gmail.com>
Subject: RE: Rule 2.420 Administrative Public Records Request — Case Nos. 2D2025-1936, 2D2026-0279, 2D2025-0681, and 24-DR-001150 — Second Follow-Up and Renewed Pre-Suit Notice

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Dear Chief Judge Lucas:

Thank you for your written response dated July 14, 2026, and for the enclosed copy of the Court's Internal Operating Procedures (IOP). I write to identify what the response resolves and what it leaves open, and to ask that a few specific points be clarified.

1. The response gives more than one answer, and I am not certain which governs which category. As to records beyond those Clerk Kuenzel previously provided, the letter states that "any other records that may exist relating to this request are confidential and exempt pursuant to … Rule 2.420(c)(1)." It also states that the Court has "not identified responsive administrative records in our files," while noting that "a request has been made to the Office of State Courts Administrator … for responsive e-mail and messages," which, as I read the letter, remains pending.

There are different responses (confidential vs. not identified), and they call for different next steps: a record withheld as exempt calls for a written statement of the basis for the denial under Rule 2.420(m)(2); a category as to which no record exists calls, once the pending search is complete, for a statement of the search that was conducted. So that the request can be resolved, I respectfully ask that the Court identify, for each of my three narrowed categories, which of these responses applies.

2. The enclosed Internal Operating Procedures indicate that records of the kind I requested are generated in the ordinary course.

As to **category (1)** of my June 4 request — formalized judicial-assignment memoranda, administrative orders, or directives establishing panel compositions and duty assignments — Section 3.3 of the IOP ("Orders of Disposition") provides: "In all proceedings disposed of by order, except voluntary dismissals, the clerk identifies on the face of the order the names of the participating judges on the case." A number of the orders entered in my cases were issued under the designation "BY ORDER OF THE COURT" without identifying the participating judges. I respectfully ask that the Court's search account for any records that reflect which judges participated in those orders. If, as to any such order, no record identifies the participating judges, I ask that the Court say so, so that the record reflects how those orders were entered.

As to **category (2)** — administrative communications and records referencing the scheduling, administration, or routing of these cases, or referencing me by name — the IOP describes several such records:

- **Section 1.7** provides that a party "may inquire of the clerk to determine whether any judge is recused in their case." That inquiry is answerable for each of my four cases, and I respectfully make it here.
- **Section 3.7** provides that the Clerk prepares monthly reports of cases pending beyond the applicable time standards, and a similar report for rehearings pending more than sixty days, each appended to the court conference agenda; and that the Clerk provides quarterly reports to the Chief Justice under Rule 2.250(b).
- **Section 2.4** provides that administrative orders are maintained in the custody of the Clerk.
- **Section 1.6** provides that the Clerk records the minutes of court conferences.

In addition, Clerk Kuenzel's June 3 response identified an **April 7, 2026 oral argument sign-in sheet** — a record she listed among "documents reflecting panel assignment" and priced for copying. I do not ask the Court to agree that each of these is responsive to my request. I ask that the search reflected in the July 14 letter provide a definitive answer on whether records may exist based on the Court's own procedures, or conclusively state that none exist.

3. The referral to the Office of State Courts Administrator is not yet complete. The July 14 letter states that a request "has been made to the Office of State Courts Administrator, Office of Information Technology, for responsive e-mail and messages," and that "[w]e expect a report this week; when it is received, I will update this response." That week has closed, and I have not received an update. I respectfully request the promised supplement when it is ready, and, so that the record is clear, (a) the date the referral was made, (b) the search terms used, and (c) the systems and custodians searched.

4. Important items remain outstanding. (a) I have received no statement of the search that was conducted, which I requested; (b) for anything withheld as exempt, I have received no written statement of the basis for the denial — which Rule 2.420(m)(2) requires, and which, to be meaningfully reviewable, should identify each withheld record and the specific basis for withholding it; (c) my request that responsive records be **preserved** pending resolution has not been acknowledged, and I renew it here; and (d) Case No. 24-DR-001150, which was included in my June 4 and July 8 requests, does not appear in the July 14 letter's caption — I ask that it be included.

5. A note on custodianship. The IOP assigns the duty of "[m]aintaining the court's administrative records and responding to requests for such records" to the Marshal (§ 4.1(K)). I raise this so that the request reaches the right office within the Court; I do not understand it to

displace the Chief Judge's role as custodian under Rule 2.420(b)(3). By separate letter of today's date, I have also directed the same request to Marshal Haynes as the officer Section 4.1(K) designates. I do so to ensure the request reaches the right office, not to burden the Court with duplicate demands, and I remain content for the Court to coordinate a single response as it sees fit.

Renewed pre-suit notice. I would far prefer the records, or a lawful, record-specific statement of any basis for withholding them, to litigation. This letter renews the notice in my July 8 letter that, absent an adequate response, I intend to seek expedited review of the denial of access under Rule 2.420(l). As to the items within the Court's own files — a statement of the search conducted, any basis for withholding records, preservation, and the corrected caption — I respectfully ask that they be addressed **within seven days of this letter, by Monday, July 27, 2026.** As to the pending report from the Office of State Courts Administrator, I ask only that the Court's supplement follow promptly once that office responds.

I remain willing to confer on any specific question of responsiveness or exemption.

Respectfully submitted,

Christopher A. Hanson

Florida Bar No. 44094, self-represented

On Tuesday, July 14, 2026 at 08:53:05 AM EDT, 2dcaAdministrative <2dcapio@flcourts.org> wrote:

Please see the attached response from Chief Judge Lucas.

From: [redacted]

Sent: Wednesday, July 8, 2026 2:14 PM

To: truthoverchaos@outlook.com; chris hanson <christophhanson77@gmail.com>; 2dcaAdministrative <2DCAPIO@flcourts.org>; 2dca Clerk <2dcaClerk@flcourts.org>

Subject: Re: Follow up on Public Records Requests for Administrative Records (Rule 2.420) — Routing to Chief Judge Lucas Required - Case Nos 2D2025-1936, 2D2026-0279, 24-DR-00150, and 2D2025-0681

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July 8, 2026
Chief Judge Matt Lucas
Second District Court of Appeal
525 Mirror Lake Drive North
St. Petersburg, FL 33701
(transmitted by email through the Clerk of the Court)

RE: Rule 2.420 Administrative Public Records Request — Cases 2D2025-1936, 2D2026-0279, 2D2025-0681, 24-DR-001150 — Follow-Up and Pre-Suit Notice

Dear Chief Judge Lucas:

I write to follow up on a Rule 2.420 public records request directed to you as custodian of administrative court records, which the Clerk of the Second District Court of Appeal confirmed on June 4, 2026 would be forwarded to your office. As of today, thirty-four days have elapsed with no response, acknowledgment, or production from your office.

By way of background: on May 14, 2026, I submitted a Rule 2.420 request to Clerk Mary Beth Kuenzel covering nine categories of records in the above-captioned cases for the period January 1, 2025 to present. On June 3, 2026, Clerk Kuenzel provided a substantive response that produced only already-public docket items and denied every administrative category with a single boilerplate assertion that all non-docket records are confidential and exempt under Rule 2.420(c)(1).

On June 4, 2026, I submitted a revised and narrowed request directed expressly to the Chief Judge, because the rule itself places custody of these records in your office: Rule 2.420(b)(3) provides that "[t]he custodian of all administrative records of any court is the chief justice or chief judge of that court." *See also Times Publishing Co. v. Ake*, 660 So. 2d 255 (Fla. 1995) (access to judicial-branch records is governed by the Supreme Court's rule, with the clerk acting as an arm of the court). Later that morning, Clerk Kuenzel confirmed that my request would be forwarded to you.

The three narrowed categories I requested are: (1) formalized judicial-assignment memoranda, administrative orders, or directives establishing panel compositions and duty assignments for the above-captioned cases (expressly waiving, for now, internal conflict-check sheets and automated audit trails); (2) administrative communications among judges, judicial assistants, staff attorneys, clerks, or court administrators referencing the scheduling, administration, or routing of those cases or my name; and (3) telephone records — call-detail logs or voicemails — referencing the above-captioned cases or my name. I waived native-format production and accepted searchable flattened PDFs.

Two points of law bear emphasis. First, the Clerk's blanket reliance on Rule 2.420(c)(1) does not extend to the records now at issue. That exemption protects the substance of judicial deliberation — a judge's mental process in reaching a decision. It does not shield the administrative machinery of case assignment, panel scheduling, and case routing, which are ministerial functions. Panel-assignment memoranda and scheduling directives are administrative records, not deliberative communications. Second, thirty-three days without any acknowledgment from the custodian is unreasonable delay. The Florida Supreme Court has held that the only delay the public-records regime permits is "the limited reasonable time allowed the custodian to retrieve the record…" and remove exempt materials. *Tribune Co. v. Cannella*, 458 So. 2d 1075, 1079 (Fla. 1984); *see Lilker v. Suwannee Valley Transit Auth.*, 133 So. 3d 654, 655–56 (Fla. 1st DCA 2014) (unjustified delay in producing records amounts to an unlawful refusal). I recognize that *Cannella* and *Lilker* arise under chapter 119 while this request arises under Rule 2.420; I cite them for the access principle Florida courts apply across both regimes, with the duty and the remedy here supplied by Rule 2.420 itself, which requires a written, reviewable basis for any denial and provides expedited mandamus review.

Accordingly, I make the following specific demands:

1. Within **five (5) business days** of this letter — that is, by **Tuesday, July 14, 2026** — please respond to this request by producing all responsive records. If you do not complete that, please provide a certified search statement — identifying by name the person(s) who conducted the search, the systems and locations searched, the specific search terms and queries used (including my name and each of the four case numbers above), and the date(s) of the search — confirming that no responsive records exist.
2. If any records are withheld as exempt under Rule 2.420(c)(1) (or any other sub-provision claimed), Rule 2.420(m)(2) requires a written statement of the basis for the denial. For that statement to be meaningful — and reviewable under Rule 2.420(l) — it must identify, for each withheld record: (a) a description of the record; (b) its date; (c) its author; (d) its recipient(s); (e) the specific Rule 2.420(c) sub-provision claimed; and (f) the factual basis for the claimed exemption. For any record withheld only in part, the non-exempt portions must be produced with the exempt material redacted; a record is not exempt in its entirety merely because it contains some exempt content. A blanket assertion that entire categories are exempt states a conclusion, not a basis.
3. Because this letter is express notice of an anticipated mandamus proceeding, please preserve all records responsive to this request — including any withheld as exempt — together with all communications concerning the request and its handling, pending resolution.
4. If your office takes the position that these records are custodied by a different person or office, please **identify that custodian** by name and contact information within the same five business days so that the request may be properly directed.

I respectfully note that I have made every effort to narrow this request to its most clearly administrative core, waive categories most likely to raise deliberation concerns, and accept a convenient production format. I remain willing to meet and confer on any specific responsiveness or exemption question.

Please treat this letter as pre-suit notice. If I receive no response within five business days of this letter — by **Tuesday, July 15, 2026** — I intend to seek expedited review of the denial of access by petition for writ of mandamus pursuant to Rule 2.420(l), without further notice. I would far prefer the records, or a lawful, record-specific statement of any basis for withholding them.

Respectfully submitted,

Christopher Hanson
Florida Bar No. 44094, Pro Se
[redacted] · christophhanson77@gmail.com

On Thursday, June 4, 2026 at 08:04:58 AM EDT, 2dca Clerk <2dcaclerk@flcourts.org> wrote:

Good morning,

Your request will be forwarded to the Chief Judge of the Second District Court of Appeal, Chief Judge Matt Lucas.

Sincerely,

Mary Beth Kuenzel, Clerk

From: [redacted]

Sent: Thursday, June 4, 2026 7:38 AM

To: truthoverchaos@outlook.com <truthoverchaos@outlook.com>; 2dca Clerk <2dcaClerk@flcourts.org>; chris hanson <christophhanson77@gmail.com>; 2dcaAdministrative <2DCAPIO@flcourts.org>

Subject: Formal New and Specific Public Records Request for Administrative Records (Rule 2.420) — Routing to Chief Judge Sleet Required - Case Nos 2D2025-1936, 2D2026-0279, 24-DR-00150, and 2D2025-0681

CAUTION

This email originated from outside of the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Good morning Ms. Kuenzel and clerk's office. You will find attached and also copied in this email below a new and specific request for administrative court records directed to the Chief Judge. I have attached a document, but I'm also pasting the text from the letter below for your convenience.

As noted in the correspondence, pursuant to Florida Rule of Judicial Administration 2.420(b)(3), the Chief Judge is the legal custodian of these administrative records. A previous request submitted on May 14, 2026, to the Clerk of Court cannot be fulfilled by the Clerk under the binding precedent of *Russo v. Blanks.*

I am hoping that this adjustment - directing the request directly to the chief Judge will alleviate many or all of the concerns with the response from the Court yesterday. I will review that response and be in touch with any continuing concerns once I have the opportunity to review that.

Please immediately forward this request to Chief Judge Sleet's chambers and/or the Trial Court Administrator's office for processing, and kindly confirm receipt and routing.

Sincerely,

Christopher A. Hanson, Esq.
[redacted]

Formal Public Records Request Letter (Attachment)

VIA EMAIL (2dcaClerk@flcourts.org)

To: Chief Judge Daniel H. Sleet Custodian of Administrative Records Second District Court of Appeal 525 Mirror Lake Drive N. St. Petersburg, FL 33701

From: Christopher A. Hanson, Esq. [redacted] **Date:** June 4, 2026 **Re: Public Records Request for Judicial Branch ADMINISTRATIVE RECORDS (Rule 2.420) — Case Nos. 2D2025-1936, 2D2026-0279, 2D2025-0681, and 24-DR-001150**

Dear Chief Judge Sleet:

Pursuant to Article I, Section 24(a) of the Florida Constitution and Florida Rule of General Practice and Judicial Administration 2.420, I respectfully request inspection and copying of the public records described below.

This administrative public records request is formally directed to you, Chief Judge Sleet, as the chief judicial officer and designated records custodian of the court, pursuant to the authority and obligations set forth in Florida Rule of General Practice and Judicial Administration 2.420(a) and 2.420(b)(3). The scope of this request is strictly limited to non-exempt, operational, and administrative records of the Second District Court of Appeal, and it is submitted through the court's designated institutional portal at 2dcaClerk@flcourts.org for processing and production.

An examination of my previous May 14, 2026, request to the Second District Court of Appeal (attached below) reveals that it was addressed entirely to Mary Beth Kuenzel, the Clerk of Court. Because some of the requested items are likely classified as "administrative records" under Rule 2.420(b)(1)(B), the Clerk is not the legal custodian under the binding precedent of *Russo v. Blanks*.

I request all responsive administrative records created, sent, or received between **January 1, 2025, and the date this request is fulfilled**, relating to Case Nos. 2D2025-1936, 2D2026-0279, 2D2025-0681, and 24-DR-001150 and (collectively, "the Cases"):

I. ADMINISTRATIVE RECORDS REQUESTED

1. Formalized Judicial Assignment Memoranda: All formalized administrative orders, directives, or memoranda issued by the Chief Judge or the Trial Court Administrator that establish panel compositions and duty assignments for the Cases including but not limited to all motions and other aspects of the cases mentioned above. *(Note: For the time being, I am explicitly waiving the request for internal conflict-check sheets or automated database audit trails to avoid implicating pre-decisional deliberations under Rule 2.420(c)(1), reserving the right to seek them at a later date if necessary).*

2. Administrative Communications: All emails, text messages, instant messages, or other written communications sent or received by any judge, judicial assistant, staff attorney, or court administrator that reference, discuss, or relate to the scheduling, administration, or routing of the Cases, or that reference me by name.

3. Telephone Records: All call detail records, telephone logs, and voicemails from court systems relating to the Cases.

II. FORMAT, SEARCH PARAMETERS, AND EXEMPTIONS

1. Format and Fees (Waiver of Native Metadata): To eliminate technical barriers for the Court's redaction officers, accelerate response times, and avoid extensive IT programming fees or "special service charges," I am temporarily waiving the requirement for native .msg and .eml files for internal communications. I agree to accept searchable, flattened PDF files for all administrative emails. However, I expressly reserve the right to subsequently request the native files, metadata, CMS audit trails, and internal conflict-check sheets should the initial PDF production prove insufficient.

2. Personal Devices and "Shadow Files": This request explicitly includes any text messages, Signal, or WhatsApp communications on personal devices used by 2nd DCA judges or staff to conduct official court business regarding the administration or handling of these Cases.

3. Sworn Search Certification: If the Court claims that any of the requested administrative records "do not exist," I demand a sworn affidavit detailing the exact search methods, applications, and devices checked to confirm completeness.

4. Strict Privilege Log Requirement: If you contend that any record or portion of a record is exempt, you must state the basis for the exemption in writing. For any withheld record, you must provide a detailed privilege log identifying the date, author, recipient, general subject matter, and the specific statutory or rule-based exemption claimed.

Please acknowledge receipt of this request and provide an estimated timeline for production.

Sincerely,

Christopher A. Hanson, Esq.

FL Bar #44094

[redacted]

[redacted]

On Wednesday, June 3, 2026 at 02:53:43 PM EDT, 2dca Clerk <2dcaclerk@flcourts.org> wrote:

Good afternoon,

This letter responds to your email of May 18, 2026. Access to court records is governed by Article I, section 24, Florida Constitution, and Florida Rule of General Practice and Judicial Administration 2.420. Rule 2.420(b)(1)(A) defines court records as

> the contents of the court file, including the progress docket and other similar records generated to document activity in a case, transcripts filed with the clerk, documentary exhibits in the custody of the clerk, and electronic records, videotapes, or stenographic tapes of depositions or other proceedings filed with the clerk, and electronic records, videotapes, or stenographic tapes of court proceedings[.]

Pertinent to your request, rule 2.420(c)(1) directs that the following are confidential and exempt records:

> Trial and appellate court memoranda, drafts of opinions and orders, court conference records, notes, and other written materials of a similar nature prepared by judges or court staff acting on behalf of or at the direction of the court as part of the court's judicial decision-making process utilized in disposing of cases and controversies before Florida courts unless filed as a part of the court record[.]

You have requested "inspection and copying of the public records described below. The records relate to three 2nd DCA cases in which [you are] or have been a party and an attorney: Case Nos. 2D2025-1936, 2D2026-0279, 24-DR-00150, and 2D2025-0681 (collectively, "the Cases")" for "Time period: January 1, 2025, through the date of [this] response." Please see my responses below.

1. **Identification of judges issuing orders in the Cases. A substantial number of the orders entered in the Cases were issued under the designation "BY ORDER OF THE COURT" without identifying the signing judge or panel. I request the records sufficient to identify, for each such order, which judge or judges issued or concurred in that order, and the panel composition (if any). This includes internal cover sheets, transmittal records, panel attribution records, and corresponding entries in the Court's case management system.**

For case no. 2D2026-0279, the judges' names are listed on the February 10, 2026, disposition order (1 page). You may obtain a copy of this order without charge on the Florida Appellate Case Information System (ACIS) (https://acis.flcourts.gov/portal/home). A copy from this office will be provided upon payment of the $1 charge for copies. There are no other documents filed as a part of the court record that are responsive to this request, and any records not filed as a part of the court record are confidential and exempt under rule 2.420(c)(1).

2. **Panel assignment and reassignment records. Records reflecting the assignment of judges to the Cases, including panel assignment logs, reassignment records, recusal and conflict-check records, and substitution records.**

The documents reflecting panel assignment are as follows:
Case no. 2D2025-1936:

- February 11, 2026, Notice of Oral Argument (3 pages);
- OA sign-in sheet for April 7, 2026 (2 pages); and
- April 15, 2026, disposition (2 pages).

Case no. 2D2026-0279:

- February 10, 2026, disposition order (1 page).

Case no. 2D2025-0681:

- September 12, 2025, disposition (1 page).

Copies of the notice of oral argument and dispositions may be obtained without charge on the Florida Appellate Case Information System (https://acis.flcourts.gov/portal/home). The charge for copies from this office is $1 per page. For a copy of the documents listed above, the charge is $9.

There are no other documents filed as a part of the court record that are responsive to this request, and any records not filed as a part of the court record are confidential and exempt under rule 2.420(c)(1).

3. **Administrative communications regarding the Cases. Emails, text messages, instant messages, letters, and other communications sent or received by any judge, judicial assistant, staff attorney, clerk, deputy clerk, court administrator, or other court personnel that reference, discuss, or relate to the Cases or to me by name.**

There are no documents filed as a part of the court record that are responsive to this request, and any records not filed as a part of the court record are confidential and exempt under rule 2.420(c)(1).

4. **Case management system records. Internal docket annotations, routing records, internal notes fields, and similar case-management entries relating to the Cases.**

There are no documents filed as a part of the court record that are responsive to this request, and any records not filed as a part of the court record are confidential and exempt under rule 2.420(c)(1).

5. **Calendar and scheduling records. Calendar entries — in any format used by court personnel — relating to the Cases, including entries for conferences, oral arguments, and panel meetings.**

Oral arguments are listed on the calendar events in the Florida Appellate Case Information System and can be viewed by entering the date in the Oral Argument search. There are no documents filed as a part of the court record that are responsive to this request, and any records not filed as a part of the court record are confidential and exempt under rule 2.420(c)(1).

6. **Telephone records. Call detail records and voicemails from court systems relating to the Cases.**

There are no documents filed as a part of the court record that are responsive to this request, and any records not filed as a part of the court record are confidential and exempt under rule 2.420(c)(1).

7. **System-generated audit trails associated with the Cases. System-generated audit trails for the Court's case management system reflecting access, modification, addition, deletion, and routing events associated with the Cases.**

There are no documents filed as a part of the court record that are responsive to this request, and any records not filed as a part of the court record are confidential and exempt under rule 2.420(c)(1).

8. **Records held by third parties on behalf of the Court. Records relating to the Cases held by any court reporter, transcription service, audiovisual contractor, or other vendor on behalf of the Court.**

There are no documents filed as a part of the court record that are responsive to this request. The April 7, 2026, oral argument in case no. 2D2025-1936 was live-streamed on the Court's YouTube channel and can be found there by searching for the date. A copy of the recording is available on the Court's website (https://2dca.flcourts.gov/oral-arguments/Archived-Oral-Argument-Videos) and can be located there by searching for the case number.

9. **Records retention documentation. The applicable records retention schedule (GS11 or its successor), and any records-disposition documentation reflecting destruction of records that would otherwise have been responsive within the time period.**

There are no documents filed as a part of the court record that are responsive to this request. For information only, your attention is directed to Florida Rules of General Practice and Judicial Administration 2.430 and 2.440.

Sincerely,

Mary Beth Kuenzel, Clerk
Second District Court of Appeal
525 Mirror Lake Drive N.
St. Petersburg, FL 33701

From: [redacted]
Sent: Wednesday, June 3, 2026 5:45 AM
To: truthoverchaos@outlook.com <truthoverchaos@outlook.com>; 2dca Clerk <2dcaClerk@flcourts.org>
Subject: Re: Public Records Request — Case Nos. 2D2025-1936, 2D2026-0279, and 2D2025-0681

CAUTION

This email originated from outside of the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Good morning. Please let me know the status of the public records response. Thank you.

Chris Hanson
[redacted]

On Tuesday, May 19, 2026 at 08:15:52 AM EDT, 2dca Clerk <2dcaclerk@flcourts.org> wrote:

Good morning,
I apologize for the confusion. Your earlier email attached a document, but we do not generally open attachments from unknown senders. This is the reason why I asked you to either send an email or mail your request.

Your email request (below) has been received, and a response will be forthcoming.

Thank you.

Mary Beth Kuenzel, Clerk
Second District Court of Appeal

From: [redacted]
Sent: Monday, May 18, 2026 4:44 PM
To: Mary Beth Kuenzel, Clerk <kuenzelm@flcourts.org>; truthoverchaos@outlook.com; 2dca Clerk <2dcaClerk@flcourts.org>
Subject: Re: Public Records Request — Case Nos. 2D2025-1936, 2D2026-0279, and 2D2025-0681

CAUTION
This email originated from outside of the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Good afternoon. I'm a bit confused about the email correspondence back and forth today. I had attached a letter last week requesting the materials. I was told to place in the body of an email. here is another request at that.

Please provide the response at your earliest convenience and let me know if you need anything more from me. Thank you.

Chris Hanson

Specification on records requested:

May 14, 2026 Clerk of Court / Records Custodian Florida Second District Court of Appeal – Mary Beth Kuenzel, [kuenzelm@flcourts.org] Re: Public Records Request — Case Nos. 2D2025-1936, 2D2026-0279, and 2D20250681 Dear Ms. Kuenzel: Pursuant to Article I, Section 24 of the Florida Constitution, Florida Rule of General Practice and Judicial Administration 2.420, and the Florida Supreme Court's policy governing access to records of the judicial branch as currently implemented by AOSC24-65, I respectfully request inspection and copying of the public records described below. The records relate to three 2nd DCA cases in which I am or have been a party and an attorney: Case Nos. 2D2025-1936, 2D2026-0279, and 2D2025-0681 (collectively, "the Cases"). I have organized this request to be straightforward to fulfill. Where a category may implicate exemptions, I have so indicated, and I request only the non-exempt, segregable portions consistent with Rule 2.420 and the corresponding privilege log should the court assert any exemptions. Time period: January 1, 2025 through the date of your response. Records Requested 1. Identification of judges issuing orders in the Cases. A substantial number of the orders entered in the Cases were issued under the designation "BY ORDER OF THE COURT" without identifying the signing judge or panel. I request the records sufficient to identify, for each such order, which judge or judges issued or concurred in that order, and the panel composition (if any). This includes internal cover sheets, transmittal records, panelattribution records, and corresponding entries in the Court's case management system. 2. Panel assignment and reassignment records. Records reflecting the assignment of judges to the Cases, including panel assignment logs, reassignment records, recusal and conflict-check records, and substitution records. 3. Administrative communications regarding the Cases. Emails, text messages, instant messages, letters, and other communications sent or received by any judge, judicial assistant, staff attorney, clerk, deputy clerk, court administrator, or other court personnel that reference, discuss, or relate to the Cases or to me by name.
4. Case management system records. Internal docket annotations, routing records, internal notes fields, and similar case-management entries relating to the Cases. 5. Calendar and scheduling records. Calendar entries — in any format used by court personnel — relating to the Cases, including entries for conferences, oral arguments, and panel meetings. 6. Telephone records. Call detail records and voicemails from court systems relating to the Cases. 7. System-generated audit trails associated with the Cases. System-generated audit trails for the Court's case management system reflecting access, modification, addition, deletion, and routing events associated with the Cases. As you are aware, the State of Florida's Electronic Records and Records Management Practices recognizes systemgenerated audit trails as a record series. 8. Records held by third parties on behalf of the Court. Records relating to the Cases held by any court reporter, transcription service, audiovisual contractor, or other vendor on behalf of the Court. See News & Sun-Sentinel Co. v. Schwab, Twitty & Hanser Architectural Group, Inc., 596 So. 2d 1029 (Fla. 1992). 9. Records retention documentation. The applicable records retention schedule (GS11 or its successor), and any records-disposition documentation reflecting destruction of records that would otherwise have been responsive within the time period. Format of Production To minimize cost and preserve usefulness, I request electronic production in native format with metadata intact (for example: emails in .msg, .eml, or comparable format with full headers; documents in their native authoring format; CMS data in .csv or .xlsx; recordings in their captured format). PDF rasterizations of emails are not adequate substitutes for native format. Delivery by email or secure file transfer is preferred.

Exemptions If you contend that any record or portion of a record is exempt, please identify the specific exemption claimed and the basis for it on a record-by-record basis, and produce all nonexempt, segregable portions. I am happy to discuss the scope or sequencing of production if any specific concern about burden arises. Records Identified as Unavailable If any responsive record has been deleted, destroyed, or is otherwise unavailable, please identify the record, the date and basis of deletion, and the applicable retention authority, and confirm whether any backup, archive, or audit-trail entry of the record remains available. Records on Personal Devices and Non-Court Accounts To the extent any responsive records exist on personal devices, personal email accounts, or other non-Court systems used for the transaction of public business relating to the Cases, those records are responsive. See Butler v. City of Hallandale Beach, 121 So. 3d 1063 (Fla. 4th DCA 2013). Costs Please provide a written estimate of any anticipated costs before incurring them. Thank you for your attention to this request. I look forward to your response within a reasonable time. So that responsive records are not inadvertently lost during the pendency of this request, I respectfully ask that any routine deletion or retention-schedule-driven disposition affecting responsive records be paused until production is complete and any related litigation reaches its endpoint. That could take quite some time so I request that the DCA retain all materials and information on the cases until further notice. Please let me know if you have any questions or concerns regarding the above. I look forward to hearing from you.

On Thursday, May 14, 2026 at 01:06:30 PM EDT, [redacted] wrote:

Good afternoon. Please confirm receipt of the attached public records request and let me know if you need anything from me to complete the response. Thank you.

Chris Hanson
FL Bar #44094
[redacted]